

SECTION 1: PERFORMANCE WORK STATEMENT (PWS)

PART 1 – GENERAL

1. GENERAL: The following provisions shall apply to the performance of work under this contract:

1.1. SCOPE OF WORK: Provide all resources, except Government Furnished Property (GFP), necessary to provide labor, equipment, tools, materials, supervision and other items necessary to perform cleaning services on Fort Drum, NY.

1.2. HOURS OF OPERATION: Contractor operating hours shall be consistent with normal core duty hours of Fort Drum unless otherwise directed by the Contracting Officer (KO) or the Contracting Officer Representative (COR). Normal core duty hours are 7:30 AM - 4:00 PM, Monday through Friday, excluding Government holidays.

1.3. CONTRACTOR PERSONNEL: For the purpose of this contract, the term “Contractor personnel” applies to all Contractor employees, Subcontractor employees, or any other person(s) acting for or on behalf of the Contractor to perform work on this contract.

1.3.1. Project Manager: Prior to contract performance, the Contractor shall designate in writing, to the KO, a Project Manager (PM), who shall be responsible for the overall management, coordination, and supervision of the work performed. The PM shall have knowledge of the terms and conditions of the contract. This PM shall have full authority to act for the Contractor on all contract matters relating to daily operations of this contract. The PM shall be available, by phone, anytime Contractor personnel are performing services on Fort Drum.

1.3.2. Contractor Employee

1.3.2.1. General Qualifications: Contractor employees shall be trained, qualified, certified and/or licensed under the requirements specified in this contract prior to starting work. The Contractor shall maintain records of training qualifications, certifications, and licenses and provide them to the (KO) upon request. The Contractor shall ensure that the employees remain fully qualified to perform work under this contract. The Contractor shall maintain the work force in such a manner as to ensure that the employees remain fully qualified. The Contractor shall only employ persons able to speak, read, write, and understand English for those positions interacting with Government personnel, and where English is used or essential to provide the product, record, data, information, or service. Contractor personnel shall be physically capable of performing work under all climatic conditions.

1.3.2.2. Specialized Qualifications: The Contractor shall be licensed in mold remediation for areas exceeding 10 square feet.

1.3.3. Employee Conduct: The Contractor shall not allow any employee to perform work who has illegal possession of, or who is under the influence of alcohol or controlled substances. Government rules, regulations, laws, directives, and requirements, which are in place or issued during the contract term shall be applicable to all Contractor employees or representatives who enter the Installation or who travel using Government transportation. Violation of such rules, regulations, laws, directives, or requirements shall be grounds for removal (permanently or temporarily as the Government determines) from the work site. Individuals who violate such rules, regulations, laws, directives, or requirements may be denied access to the Installation, either temporarily or permanently. Contractor personnel receiving a driving under the influence conviction may be prohibited from driving on the installation.

1.3.4. Employee Appearance: Contractor employees shall be appropriately dressed including any necessary individual protective clothing and equipment.

1.3.5. Personnel Constraints/Conflicts of Interest: The Contractor shall not hire for this contract, any person whose employment would result in a conflict of interest, or employment which is prohibited by Department of Defense (DOD) Regulation 5500.7-R entitled "Joint Ethics Regulation ", Dated November 17, 2011.

1.3.6. Personnel Safety: The Contractor shall be responsible for initiating, maintaining, and supervising all safety precautions and programs in connection with the work. The Contractor shall comply with all applicable federal, state, local, and Fort Drum laws and regulations including, but not limited to environmental, safety, and

occupational health laws and regulations. Except as otherwise stated in the contract, if the Contractor encounters material on the project site reasonably believed to be hazardous (such as ammunitions), the Contractor shall immediately stop work in the affected area and give notice of the condition to Range Control (315-772-7152) and contact the KO or COR. Work in the affected area shall not resume without written permission of the KO or COR.

1.4. SERIOUS ACCIDENT AND INCIDENT REPORTING:

1.4.1. The Contractor shall report serious accidents and incidents incurred while performing work under this contract immediately by the most expeditious means possible but not more than one hour following the accident or incident to the Fort Drum Directorate of Emergency Services (DES), the Safety Office, and KO. Serious accidents and incidents include, but are not limited to, those defined in Army Regulation (AR) 385-10 and AR 190-40 respectively or referenced in other applicable directives. Examples are as follows: One or more lives lost, one or more persons critically injured, three or more persons hospitalized due to one incident, property damage estimated to exceed \$2,000, fire causing major damage to structures, equipment, or vehicles, and HAZMAT, hazardous substances, and HAZWASTE incidents.

1.4.2. Record of Injury Form: Immediately after a job-connected injury, the Contractor shall prepare a record of the incident/accident and forward it to the COR. The COR will forward the incident/accident report to the Command Safety Office. If more information is required, the Command Safety office will coordinate with the COR for the required information.

1.5. CLAIMS LIABILITY ARTICLE: The Contractor shall indemnify, save harmless, and defend the Government from and against any and all claims, damages, actions, debts, liabilities, and attorneys' fees arising out of or in any manner predicated upon loss of or damage to the property of, and injury to or death of any and all persons whatsoever, in any manner caused or contributed to by the Contractor, his agents, servants, employees or Subcontractors while in, upon, or about the military installation wherein this work is located, or while going to or departing from the same; and to indemnify and save harmless the Government from, and on account of damage of any kind which the Government may suffer as the result of acts of negligence, fraud or misconduct of any of Contractor's agents, servants, employees, or Subcontractors in or about said military installation.

1.6. SECURITY, INSTALLATION ACCESS AND CONTROL, AND TRAINING:

1.6.1. Anti-terrorism (AT) Level I training: All Contractor employees, to include Subcontractor employees, requiring access to Army installations, facilities and controlled access areas shall complete AT Level I awareness training within 30 calendar days after contract start date. The Contractor shall submit certificates of completion for each affected Contractor employee and Subcontractor employee in WAWF with their invoice for the applicable invoicing period. If requested by the KO, the Contractor shall also submit certificates of completion to the COR or to the KO within 5 days of request. AT Level I awareness training is available at the following website: <https://jkodirect.jten.mil>

1.6.2. Access and general protection/security policy and procedures.

1.6.2.1 Entry to the installation requires the following: current vehicle registration, proof of insurance, valid driver's license for the vehicle driver, and picture identification for other personnel. Contractors/ Subcontractors and their employees requiring access to the installation will be required to comply with the installation access control policy/procedures. The Government will not be responsible for damages due to delay/stoppages caused by failure to comply. Contractors shall be restricted to physically signing in at the LTG Paul Cerjan Access Control Point or Gas Alley Access Control Point for entry to the installation, unless they have a DoD issued ID card, a local temporary pass, or a local access badge (LAB). The Contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by the DES or Security Office. Contractor personnel must comply with all personal identity verification requirements as directed by DOD, Headquarters, Department of the Army (HQDA) and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes to Contractor security matters or processes.

1.6.2.2. The Contractor shall provide a list of names and dates of birth of all employees that will be working on this contract to include Subcontractors at least 7 days prior to access being needed. CORs are required to complete and submit an IMDR-ES Form 2 (Application for Sponsorship) for all individuals needing access under the contract.

1.6.2.3. Each employee who requires access to Fort Drum to perform work under any contract, at any tier, must obtain a DoD identification credential, temporary pass, or a LAB.

1.6.2.4. The Contractor shall provide information as required by the Fort Drum Chief of Physical Security to enable the Government to conduct a criminal history background check (CHBC) on Contractor employees who are to have access to Fort Drum. If the CHBC is not adverse, a 30 day temporary access pass will be prepared by the Fort Drum Physical Security Division while the Contractor's employee makes an appointment for a Local Access Badge (LAB). A LAB is required if access is needed longer than 30 days. A LAB will be issued for a period of no longer than 365 days. If the CHBC is adverse, the employee will be denied access. If access is denied, the Contractor employee may request a waiver from the installation utilizing the Access Waiver Denial Program. If a Contractor employee has been denied access to the installation, the employee will not be allowed access until a waiver is requested and approved. There is a waiver appeal process through the DES. The final determination to allow entry and/or issue DoD credentials rest with the Garrison Commander or his designee, the Director of Emergency Services.

1.6.2.5. If an employee no longer needs a DoD identification credential (e.g. quits his/her job or no longer performs under the contract), the Contractor is required to collect the DoD identification credential from the employee and surrender it to the Fort Drum Physical Security Division within four (4) calendar days of the employee's separation/departure. If the DoD identification credential cannot be returned within the required time frame, the Contractor shall immediately notify the Physical Security Division verbally, and follow up in writing the next business day. Email notification is authorized. An employee's inability to obtain entrance to a Government installation because he/she does not have the required identification credential or visitor's pass shall not excuse timely performance of the requirements of this contract. DoD identification credentials are currently issued at the Fort Drum Physical Security Division located in the Fort Drum MP Station. The Government may change the location at which DoD identification credentials are issued or returned, with or without advance notice to the Contractor. Any such changes shall not be a basis for adjusting the contract price under any clause of this contract.

1.6.2.6. DoD identification credentials will not be reproduced or copied by the Contractor, its Subcontractors, or their employees. If an employee's DoD identification credential is lost, stolen, or reproduced, the Contractor shall verbally report the loss, theft, or reproduction to the Fort Drum Physical Security Division on the day such loss, theft, or reproduction is discovered, followed by a written report of the circumstances to the Fort Drum Physical Security Division within two (2) calendar days.

1.6.2.7. Each Contractor employee shall possess/wear the DoD identification credential while performing work under the contract. The DoD identification credential shall be worn on the upper front of the outer garment unless precluded by Occupational Safety and Health Administration (OSHA) regulation(s). The DoD identification credential will not be used for access to any Government installation except for performance of work under the contract for which it was issued. The Contractor shall, upon expiration or termination of the contract, collect all DoD identification credentials and turn them in to the COR.

1.6.2.7.a. Reserved.

1.6.2.7.b. Contractor personnel that do not require a CAC, but require access to a DoD facility or installation shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), and applicable installation/facility security policies and procedures.

1.6.3. Reserved.

1.6.4. Reserved

1.6.5. Reserved.

1.6.6. Reserved.

1.6.7. OPSEC Training Requirement: All Contractor employees, to include Subcontractor employees, requiring access to an Army installation, facility, controlled, access areas, and/or installation computers shall complete OPSEC Level I training within 30 days after contract start date. The Contractor shall provide either certificates of completion or dates of attendance at the Garrison's Workforce Development quarterly training, for each affected Contractor employee and Subcontractor employee to the COR, within 15 calendar days after completion of training. OPSEC Level 1 training is available on AKO (ALMS), at the Multipurpose Auditorium (MPA) Garrison quarterly mandatory training, or DOD Civilian/Contractor training at <https://securityawareness.usalearning.gov/opsec/index.htm>.

1.7. ENVIRONMENTAL COMPLIANCE:

1.7.1. The Contractor shall comply with all Federal, State, and local regulations covering environmental protection. In case of a conflict among these laws and regulations, the most stringent law or regulation shall apply. If a Federal, State, or regulatory agency assesses any fine, penalty, or fee against the Government that is attributable to Contractor noncompliance with any environmental law or regulation, the Contractor shall indemnify the Government for the amount of the fine and other Government costs attributable to the violation (e.g., the cost of cleaning up a hazardous waste spill). In the event of Contractor noncompliance with any applicable environmental law or regulation, the KO will determine whether the Government or the Contractor is responsible for abating or correcting the violation. This provision is not intended in any way to waive the Government's rights under any other provision of this contract. The Contractor shall fully comply with current and future Fort Drum regulations, plans and changes. Of particular importance are Fort Drum Regulation 420-7 and the most current Endangered Species Act Requirements Implementing Document. All Contractors and Subcontractors shall be provided copies of these documents and are required to read and understand all facets.

1.7.2. Cultural Resources: The Contractor shall comply with all laws pertaining to cultural resources while conducting work on Fort Drum, including the National Historic Preservation Act, the Archaeological Resources Protection Act, and the Native American Graves Protection and Repatriation Act. Federal Law mandates that all cultural resources eligible for listing on the National Register of Historic Places must be protected from damage. Cultural resources include, but are not limited to, historic buildings and structures, cemeteries, historic and prehistoric archeological sites. Areas on Fort Drum containing National Register eligible cultural resources are marked with OFF LIMITS signs and/or Seibert Stakes, and shall be avoided. Federal Law prohibits Artifact/relic collecting on any cultural resource located on Fort Drum. In the event that an inadvertent discovery of items that appear to be cultural remains (historic foundations, graves, historic or prehistoric artifacts) occurs during ground disturbing activities, all work shall cease within a 30-meter radius of the find. Directorate of Plans, Training, Mobilization and Security, Range Division (315-772-7152) and Department of Public Work, Environmental Division (DPW ENVM) (315-772-4165, 315-772-2150, or 315-774-3848) shall be contacted immediately. Any fill brought from outside the installation onto Fort Drum for any project must come from a mining source that is permitted by the New York State Department of Environmental Conservation (NYS DEC) and has been evaluated and cleared by an archaeologist.

1.7.3. Fort Drum has implemented an Environmental Management System (EMS) to proactively deal with the environmental impacts of its processes, activities, and services. Fort Drum uses the International Organization for Standardization 14001:2004 as the standard for its EMS. All personnel performing work for or on behalf of Fort Drum must be aware of and understand Fort Drum's Environmental Policy. Fort Drum offers EMS General Awareness Training in the form of a printed Handout. All Contractors and their employees are required to be made aware of EMS General Awareness Training and to post an EMS handout so that it is available to all employees. Contractors are also responsible for ensuring all Subcontractors hired on their behalf receive EMS General Awareness Training handouts and that they are posted at the Subcontractor's site. The Contractor is also responsible to ensure that all goods and services used by the Contractor or any of its Subcontractors do not deviate from the installation Environmental Policy, and objectives and targets of the EMS.

1.7.4. Sustainable Acquisitions:

1.7.4.1. The Contractor shall use Contractor-provided products that meet or exceed the following specifications IAW FAR 23.103-Sustainable Acquisitions.

- (1) Energy-efficient (ENERGY STAR® or Federal Energy Management Program-designated);
- (2) Water-efficient;
- (3) Bio-based;
- (4) Environmentally preferable (*e.g.*, EPEAT®-registered, or non-toxic or less toxic alternatives);
- (5) Non-ozone depleting; or
- (6) Made with recovered materials.

1.7.4.2. The required products in the contract actions for services include products that are—

- (1) Delivered to the Government during performance;
- (2) Acquired by the Contractor for use in performing services at a Federally-controlled facility; or
- (3) Furnished by the Contractor for use by the Government.

1.7.4.3. The Contractor shall ensure that the required products in the contract actions must meet agency performance requirements.

1.7.4.4. For the purposes of meeting the 95 percent sustainable acquisition requirement, the term “contract actions” includes new contracts (and task and delivery orders placed against them) and new task and delivery orders on existing contracts.

1.7.5. Wetlands.

1.7.5.1. No activity is authorized within wetlands that are not specifically addressed in the contract. No type of fill (*e.g.*, soil, stumps, and trees) will be placed in wetlands outside of those areas specifically permitted for fill. All work shall be accomplished from the existing roadways to the greatest extent possible. If work in wetlands is unavoidable, equipment mats must be used and removed immediately upon completion of work in wetlands.

1.7.5.2. All wetland boundaries will be physically marked in the field in such a way that provides a visible barrier to all personnel and equipment operators. All boundary line markers will be maintained throughout the duration of the contract and removed upon final inspection.

1.7.5.3. All clearing in wetlands not permitted for fill will be accomplished using hand tools and all material cut will be left in place, unless it can be removed by non-ground disturbing machinery, or if possible, through felling and removal by non-ground disturbing machinery. In either case, grubbing will not be allowed.

1.7.5.4. Pesticide usage shall be IAW all applicable federal, state, and local requirements. Permits must be obtained from the New York State Department of Environmental Conservation (NYSDEC) prior to the application of pesticides within NYSDEC regulated wetlands and the associated buffer areas. Contact Fort Drum’s Wetlands Program with the limits of work for pesticide usage. Fort Drum’s Wetlands Program will be responsible for obtaining the required permits. Permitting may take up to 60 days from application submission to the issuance of the permit(s) from the NYSDEC.

1.7.5.5. All inadvertent unauthorized impacts to wetlands will be immediately halted and reported to the KO. The KO will contact Public Works Environmental Division for guidance in further reporting and/or correcting the incident.

1.7.6. Biological Resources/Fish and Wildlife.

1.7.6.1. The Contractor shall minimize interference with, disturbance to, and damage of fish and wildlife. Species that require specific attention along with measures for their protection shall be listed by the Contractor prior to beginning of construction operations.

1.7.6.2. The federally endangered Indiana bat and the federally-threatened northern long eared bat are present on Fort Drum and must be considered in all actions. Actions on Fort Drum, must be IAW requirements negotiated with the US Fish & Wildlife Service under Section 7 of the Endangered Species Act. Projects involving ANY habitat modification (e.g., vegetation removal) must be addressed by Fort Drum's Fish and Wildlife Management Program. In general, no trees greater than 3 inches (diameter breast height) may be cut from 16 April - 15 October to avoid any direct adverse effects to these bats. Clearing of natural vegetation (e.g., shrubs and trees) less than 3 inches diameter breast height (DBH) should typically occur between 1 August and 15 April annually to minimize the impact to migratory birds and to maintain foraging areas for bats. The Contractor (and all Subcontractors) shall be responsible for coordination with Fort Drum's Fish & Wildlife Management Program to ensure compliance with the Endangered Species Act and all other applicable laws and regulations pertaining to wildlife. Overall, the Contractor (and all Subcontractors) shall minimize interference with, disturbance to, and damage to plants, fish, wildlife, and their habitats on and adjacent to the project area.

1.7.6.3. Flagging or signs must be used to demarcate construction limits of a given project prior to any construction activity, vegetation, and/or tree clearing. Clearing must only occur within the flagged area, and flagging must be removed upon completion of the project.

1.7.6.4. If any bats are discovered during the demolition or repair of buildings (to include work such as complete and partial building demolition, removal/replacement of roofs, siding, etc.), all work must cease and Fort Drum's Fish and Wildlife Management Program (315-772-4999 or 315-772-9636) must be immediately contacted. If the building has pre-existing known bat colonies, then Fort Drum's Fish and Wildlife Management Program must be contacted before demolition is to occur. (At this time, the only structures known to contain bat colonies are within the historic LeRay Area.).

1.7.6.5. All bats found must be immediately reported to Fort Drum's Fish and Wildlife Management Program (315-772-4999 or 315-772-9636). Do not attempt to handle any live bats, regardless of condition. If a live bat is found in a building, please contact 315-772-2072 or 315-772-4999.

1.7.6.6. Light minimization measures are to be incorporated for all exterior lighting that may include but are not limited to full cutoffs, reflectors, shields, downward angling of lights and/or reduction of correlated color temperatures to reduce blue-rich, white light. Fort Drum's Fish and Wildlife Management Program must be contacted for detailed requirements that must be followed to the maximum extent possible.

1.7.6.7. No night lighting for construction projects is authorized without prior coordination and authorization from the project manager and Fort Drum's Fish and Wildlife Management Program.

1.7.6.8. Project planning and design should attempt to minimize building footprints by combining infrastructure (i.e. roads, utility lines, etc.) for multiple buildings or by constructing multi-story versus multiple or expanded single story buildings whenever possible.

1.7.6.9. Pesticide usage shall be IAW all applicable federal, state, and local requirements. Fort Drum requirements can be located, in part, within the most recent Fort Drum Endangered Species Act Implementing Document. Fort Drum's Wetland's Program and Pest Control Office should be contacted for any additional requirements.

1.8. TOXIC/HAZARDOUS MATERIAL AND WASTE MANAGEMENT

1.8.1. Solid Waste: The Contractor shall remove from the installation and dispose of all solid waste generated, after it has been determined that it cannot be recycled, to a permitted and approved off-post disposal facility. The Contractor shall make every effort to achieve diversion rates set by Army and installation policy for both construction and demolition debris and other solid waste. The Contractor shall submit in writing the quantities of waste removed and recycled to the DPW ENV Solid Waste Program Manager on a monthly basis and at the expiration of the contract. The information submitted shall include the types of material disposed/recycled, location of the disposal/recycling facility, and the quantities of disposed/recycled materials.

1.8.2. Hazardous Materials: **The Contractor shall submit any hazardous material inventory list to DPW-ENV detailing the type of hazardous materials and maximum quantities of the materials on hand.** The hazardous material will be properly identified to include manufacturer and national stock number (if applicable). The Contractors shall maintain copies of the Safety Data Sheets for all hazardous materials and provide copies to DPW ENV upon request.

1.8.3. Hazardous Waste: If a Contractor generates or accumulates hazardous waste, i.e., mercury containing items, batteries, Polychlorinated Biphenyl ballasts,, waste oils, off-spec fuels, waste paint related items, or aerosols, in addition to complying with ALL Federal, State, and Local Environmental Laws and Regulations, the Contractor must also follow the Fort Drum Hazardous Waste Management Plan procedures in notifying the Hazardous Waste Manager regarding the Use, Storage, and Ultimate disposal of any Hazardous Wastes (HW) to include Universal Waste (UW) generated. The HW/UW must be disposed of within NYSDEC Laws and Regulations, for timeliness and proper Manifesting requirements. Fort Drum has an approved EPA ID number for the disposal of HW/UW from the Installation, this is the only EPA ID number that shall be used for disposal of Waste generated at Fort Drum, Contractor's will NOT use their own EPA ID number in any event to dispose of HW/UW that is generated on Fort Drum. The PW Environmental, HW Manager or appointed representative must review and sign the waste profiles/waste analysis, Land Ban restriction forms (if applicable), all manifests, and Bill of Ladings for waste that is generated on Fort Drum, prior to shipment off the Installation.

The Contractor shall provide a copy of the New York State Regulating Authority permit for each treatment, storage, disposal or recycling facility utilized. Provide a letter to Fort Drum stating that they are authorized to receive the waste stream from Fort Drum. The transporter of hazardous waste shall be licensed and/or permitted to transport hazardous waste IAW NYSDEC and Department of Transportation (DOT) regulations. The Contractor must provide a letter to Fort Drum stating that they are authorized to transport the waste stream from Fort Drum and provide a copy of the DEC/DOT Transporter Operator Permit and driver's license with hazmat endorsement.

1.8.4. Notification of the potential presence of Lead, Cadmium, Chromium (all forms), and lead in painted surfaces and dust: All areas of Fort Drum where the maintenance and repair of ground and aviation equipment has been performed may potentially contain dust with detectible levels of toxic metals including, but not limited to, chromium (all forms), cadmium, beryllium and lead. Buildings, structures, and equipment present on Fort Drum may be painted with surface coatings that contain lead and/or other toxic metals. Structures built before 1985 have the highest potential to have surface coating containing lead, but it is possible that newer structures and equipment also have surface coatings with toxic metals. All Contractors shall take necessary precautions and work practices to protect workers from exposure to the hazards associated with dust and surface coatings containing toxic metals. The Contractor shall comply with all State, federal and local regulations governing the protection of employees from hazards associated with toxic metals that may be present within infrastructure, utilities, facilities and equipment. This includes, but is not limited to, compliance with the OSHA standards such as the Lead in Construction Standard (29 CFR 1926.62), the Hexavalent Chromium Standard (29 CFR 1910.1026) and any/all similar relevant, appropriate and applicable regulations and standards.

1.9 REPORTS:

1.9.1. The Contractor shall complete responses in a timely manner to all requirements for reports and requests for information and data, both one-time and recurring.

1.9.2. Contractor Manpower Reporting: The Contractor shall report ALL Contractor labor hours (including Subcontractor labor hours) required for performance of services provided under this contract for the Department of the Army via a secure data collection site. The Contractor is required to completely fill in all required data fields using the following web address: <https://sam.gov>. Inputs will be for the labor executed during the period of performance during each Government fiscal year (FY), which runs October 1 through September 30. While inputs may be reported any time during the FY, all data shall be reported no later than October 31 of each calendar year. Contractors may direct questions to the help desk at help desk at: <https://sam.gov>.

1.10. QUALITY CONTROL PLAN (QCP): The Contractor shall maintain an inspection system acceptable to the Government covering the services under this contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the Government during contract performance and for as long

afterwards as the contract requires upon request. The Contractor shall submit its QCP to the KO no later than five calendar days after the initial request is made. The format of the QCP shall be in Microsoft Word on company letterhead.

PWS PART 2: DEFINITIONS AND ACRONYMS

2.1. DEFINITIONS: The definitions set forth below are those unique to this contract. Definitions for technical terms or words that are included in this contract can be found in the technical documents referenced in the individual functional areas of the PWS. The definitions provided below are oriented to Fort Drum's PWS. In many cases, definitions are specific by situation. The listing of definitions is not all-inclusive, but it has been derived from official publications (e.g., regulations and technical manuals) when available.

Acceptable Quality Level (AQL): The minimum level of acceptable performance of each requirement before the Government considers Contractor performance unsatisfactory.

Army Regulations (ARs): Publications issued by Department of the Army (DA) which are directive in nature and contain missions, responsibilities, policies and administrative procedures necessary to ensure uniform compliance with those policies.

Business Day: Monday through Friday, except for Government recognized holidays and days the Fort Drum duty day has been cancelled for all but emergency business.

Contracting Officer (KO): An individual with the authority to enter into, administer, and/or terminate contracts and make related determinations and findings.

Contracting Officer's Representative (COR): An individual from the functional activity appointed by the Contracting Officer and delegated specific authority to monitor contract performance and to perform specific contract administration functions.

Contract Discrepancy Report (CDR): A formal method documenting unsatisfactory Contractor performance (contract deficiencies and defects against the AQL) in the contract file.

Defective Service: A unit of service, which contains one or more defects and does not conform to specified requirements.

Federal Acquisition Regulation (FAR): Provides uniform policies and procedures for acquisitions by executive agencies of the federal Government.

Government Furnished Property: All tangible property of Government furnished to Contractor.

Hazardous Waste: A waste as defined in title 40, CFR, Part 261.3. Special handling procedures and disposal facilities are required for their disposal in compliance with federal, state and local regulations.

Quality Control: Those actions taken by the Contractor to control the in-process performance of goods or services to ensure that contract quality standards are met.

Quality Assurance Surveillance Plan (QASP): An organized written document used by the Government for quality assurance surveillance.

2.2. ACRONYMS: For the purpose of the resultant contract, the acronyms listed below shall apply:

ADPE	Automated Data Processing Equipment
AT	Anti-Terrorism
ATCTS	Army Training Certification Tracking System
ATIS	Army Training Information System

AOR	Area Of Responsibility
AQL	Acceptable Quality Level
BMP	Best Management Practices
CAC	Common Access Card
CFR	Code of Federal Regulations
CHBC	Criminal History Background Check
DA	Department of the Army
DA Cir	Department of the Army Circular
DA Pam	Department of the Army Pamphlet
DEC	Department of Environmental Conservation
DES	Directorate of Emergency Services
DFARS	Defense Federal Acquisition Regulation Supplement
DOD	Department of Defense
DOT	Department of Transportation
DPW-EV	Department of Public Work, Environmental Division
EAMS-A	Enterprise Access Management Service-Army
EMS	Environmental Management System
FPCON	Force Protection Condition
GFP	Government Furnished Property
HQDA	Headquarters, Department of the Army
HW	Hazardous Waste
IA	Information Assurance
IT	Information Technology
IAW	In Accordance With
KO	Contracting Officer
LAB	Local Access Badge
LAN	Local Area Network
MS4	Municipal Separate Storm Sewer System
MSDS	Material Safety Data Sheets
NACI	National Agency Check with Inquiries
NCIC-III	National Crime Information Center Interstate Identification Index
NYCRR	New York Codes, Rules and Regulations
NYSDEC	New York State Department of Environmental Conservation
OPSEC	Operations Security
OSHA	Occupational Safety and Health Administration
PIN	Personal Identification Number
POV	Privately Owned Vehicle
PWS	Performance Work Statement
TARP	Threat Awareness Reporting Program
TSDS	Terrorist Screening Database
UW	Universal Waste

PWS PART 3: GOVERNMENT FURNISHED RESOURCES

3.1. GENERAL:

3.2. GOVERNMENT FURNISHED SERVICES:

3.2.1. Emergency Services:

3.2.1.1. Emergency Medical Treatment: Government furnished medical service is not available to Contractor personnel, except in emergency on-the-job situations when Contractor personnel suffer serious injury or acute pain. Government emergency treatment will be provided as the first point of medical care. Transfer to non-Government

facilities shall be affected as soon as possible and as determined by attending medical authorities. The Emergency Medical Services (EMS) telephone number is 911 (or 766 from a cell phone).

3.2.1.2. Fire Protection: The Government will provide fire protection and prevention services to the contract site. These services are obtained by calling the Fort Drum Fire Department for non-emergencies at 315-772-4131 and by dialing 911 (or 766 from a cell phone) for emergencies.

3.2.1.3. Police Protection and Law Enforcement: The Government will provide Police Protection and Law Enforcement services to the Contractor and Contractor personnel on the installation. This service shall also include any investigative services related to physical security of Government owned property and incidents involving Contractor owned property inclusive of privately owned property of Contractor personnel if the incident occurs on the installation. These services are obtained by calling the DES.

3.3. GOVERNMENT FURNISHED SUPPLIES: None

3.4. GOVERNMENT FURNISHED PROPERTY: None

PWS PART 4: CONTRACTOR-FURNISHED ITEMS AND SERVICES

4.1. GENERAL: With the exception of items specifically identified as Government furnished in Part 3, the Contractor shall furnish all supplies, equipment, supervision, materials and services necessary to perform the requirements of this contract.

4.2. PERMITS, TAXES, LICENSES, ORDINANCES, AND REGULATIONS: The Contractor shall, at his own expense, obtain all necessary permits, give all notices, pay all license fees and applicable taxes, comply with municipal, State, and Federal laws, ordinances, rules and regulations applicable to the business carried on under this contract.

4.3. CONTRACTOR OWNED PROPERTY:

4.3.1. Condition of Property: All Contractor property shall be in an operable condition and meet all applicable Federal, State, Local, and Installation requirements for its operation. Equipment shall also have complete and intact design and safety features as if they were new excluding the appearance of fair wear and tear on the equipment.

4.3.2. Identification and Markings:

4.3.2.1. Equipment: All Contractor furnished equipment shall be inscribed, engraved, stamped, or otherwise permanently marked to identify it as Contractor Owned property. The method of marking and information shall be at the Contractor's discretion except that it shall minimally identify the name of the Contractor's concern.

4.3.2.2. Vehicles: The Contractor shall provide and maintain sufficient vehicles required to fulfill the terms of this contract. Contractor Vehicles shall bear the name of the Contractor's concern on both right and left side of the vehicle. Identification affixed to vehicles shall be in bold text letters not less than one half (1/2) inch in stock and not less than three (3) inches high. Color and style of text are at the Contractor's discretion providing the text is in clear and sharp contrast to the surrounding area.

4.3.2.3. Operation: All Contractor owned equipment shall be operated according to applicable Federal, State, Local, and Installation laws and regulations as they apply to the equipment. This includes the requirement that Contractor personnel shall be adequately trained and possesses all necessary licenses, certification, or other required documents to operate the equipment.

PWS PART 5: SPECIFIC TASKS

5.1. GENERAL: Specific janitorial tasks and locations will be determined by each requirement and included in each call. Those tasks listed in paragraph 5.2 are not all inclusive, additional tasks and standards may be included in calls.

5.1.1 TASKS:

5.1.1.1. Sweep: The Contractor shall sweep all floor surfaces including, but not limited to, corners, abutments, areas under easily moved furnishings, areas under entrance and other mats, all exterior surfaces within five (5) feet of the building, and to both sides of all exterior entrance, protective and other mats. Floor surfaces shall be free from all debris to include, but not limited to, soil, dust, litter, and grit.

5.1.1.2. Wet Mop: The Contractor shall wet mop all tile, terrazzo, concrete, quarry tile, hardwood floors, floor mats, steps, landings and interior entranceways with disinfecting floor products recommended for use by the flooring manufacturer. Moveable items shall be tilted or moved to damp mop underneath. The floor surface, including grout, shall be free from litter, dirt, dust, debris, scum, mildew, residue, mud, and dried on dirt, gum, tar, and salt. Floors shall have a uniform appearance without heel marks, stains, discoloration, streaks, swirl marks, detergent residue, or any evidence of soil, stain, film, or standing water. All baseboards, walls, doors, and furniture shall be free of all cleaning products used. The Contractor shall ensure safety signs are in place until floor is completely dry.

5.1.1.3. Bathroom: The Contractor shall clean and disinfect all surfaces inside bathrooms to include, but not limited to, partitions, walls, ceilings, floors, stalls, stall doors, receptacles, showers, urinals, toilet bowls, fixtures, and wall areas adjacent to lavatories, urinals, and toilets. All areas, toilet bowls, urinals, and fixtures shall be dry and free of deposits, rust stains, dirt, streaks, scale, scum, urine, and odor. Mirrors, sinks, and bathroom wall mounted and freestanding fixtures, and accessories shall be streak free and shiny. Air vents and fans shall be clean and free of all dust and dirt. Grout on wall tiles shall be free of dirt, scum, mildew, and other residue.

5.1.1.4. Low Clean: The Contractor shall clean all surfaces and anything affixed to or included in these surfaces that are zero (0) feet to eight (8) feet above the floor surface. All areas shall be free of accumulated dust, chalk, finger marks, smudges, tape, oily film, dead insects, streaks, watermarks, and splash and drip marks. All furniture shall be free from stains and soil including inside drawers and cabinets. This includes, but is not limited to, interior glass, door kick plates, wall mounted radiator surfaces, exterior surfaces of AC units, drinking fountains, and all wall and ceiling air vents.

5.1.1.5. High Clean: Clean all areas and anything affixed to, or included in, these surfaces that are 10 feet to 50 feet above the floor surface. Surfaces requiring high cleaning include, but are not limited to, grills, all light fixtures (including egg crates, plastic, glass covers, fixture frames, lamps, fluorescent tubes, and globes), pipes, sprinkler systems, all interior glass, blinds, window quilts, drapes, cables, ledges, walls, ceilings, and vents. Surfaces shall be free from glass cleaner, grease, cobwebs, dirt, dust, oily film, bugs, and other foreign matter.

5.1.1.6. Spray Buff: Spray buff resilient tile, sheet vinyl, and terrazzo floors. After buffing, floor surfaces shall have a uniform glossy appearance and shall be free from streaks, swirls, dust, and hair. The floor luster shall remain for a minimum period of five (5) days. All baseboards, walls, and furniture surfaces shall be free from buffing products used.

5.1.1.7. Strip, Seal, Finish, and Buff: Strip, seal, finish, and buff resilient tile and sheet vinyl floors. Floors shall be free from dirt, grit, dust, scuff marks, heel marks, finish build-up, stains, discoloration, and any damage from stripping operations. Floors shall have a uniform glossy appearance. The luster shall remain for a period of 60 days. Furniture shall be replaced after the floor surface is dry. Baseboards, walls, and furniture shall be free from finish build-up and any streaks.

5.1.1.8. Top Scrub, Finish, and Buff Floors: The Contractor shall scrub off topcoat of finish, reapply finish, and buff floors. No layers of dirty/yellowed finish shall be visible, nor shall there be any damage to the seal. Floors and baseboards shall be free from dirt, grit, dust, scuff marks, heel marks, finish build-up, stains, discoloration, and any damage from scrubbing operations. Under normal conditions, floors shall also have a uniform glossy appearance. Baseboards and furniture shall be free from finish build-up and streaks. Furniture shall be replaced after the floor surface is dry. Floors shall have two coats of sealer and finish applied.

5.1.1.9. Clean/Shampoo Carpets: The Contractor shall clean/shampoo all carpeting to include vertical wall

carpeted surfaces, area rugs, carpeted runners, and carpeted closets in accordance with manufacturer's recommended procedures and products for each carpet type or standard commercial practice. Carpeted areas shall be uniform in appearance, free of stains and discoloration, and the pile shall be uniform in appearance. All baseboards, walls, doors and furniture shall be free of all cleaning products used. Any items moved to clean carpets shall be returned to their original location. All carpeted areas shall be dry within 24 hours after cleaning.

5.1.1.10. Strip and Seal Quarry and Ceramic Floor Tiles: The Contractor shall strip and seal quarry and ceramic floor tiles. Floors and baseboards shall be free from dirt, grit, dust, scuffmarks, heel marks and any splashed-on cleaning or sealing solution. Floors shall have a uniform appearance with no streaks, swirl marks, or grit. Baseboards, walls, and furniture shall be free from any streaks resulting from products used during performance. Furniture shall be replaced after the floor surface is dry.

5.1.1.11. Kitchenette Cleaning/Microwave & Refrigerator Cleaning: The Contractor shall clean all interior and exterior surfaces of microwaves, refrigerators, and cabinets; and all surfaces of counters, sinks and ceramic cook tops. All areas to include seals shall be dry and free of deposits, rust stains, dirt, streaks, scale, scum, and odor.

5.1.1.12. Remove Trash: Remove all trash and replace trash liners, receptacle debris, pencil sharpener receptacle residue, and any trash placed in a receptacle identified as "trash". All trash receptacles shall be left clean, free of foreign matter, and free of odors. The trash shall be deposited in the nearest outside trash collection container.

5.1.1.13. Mold Remediation: Perform remediation of suspected mold growth in mechanical rooms, office space, hallways, barracks rooms to include bedroom suites with closets, common kitchen areas, bathrooms, and any other area specified in the task order. The Contractor shall move all furniture as necessary to perform the remediation. All furniture items shall be reset to their original locations. Refrigerators in kitchen areas shall be moved and reset.

5.2. LOG IN-OUT: The Contractor shall contact the AOD or COR when the cleaning crews start work and when they complete work.

5.3. CLEAN UP: The Contractor shall clean up all debris and discarded materials resulting from its operations at the end of each workday. Materials shall be disposed of off post IAW with applicable local, state and federal laws and regulations. In case of conflict among these laws and regulations, the most stringent law or regulation will apply. No open burning will be allowed.

PWS PART 6: APPLICABLE PUBLICATIONS

6.1. GENERAL: The following regulations/documents are applicable to this contract. The documents are Mandatory and shall be complied with. Supplements or amendments to these mandatory publications may be issued during the life of the contract. Supplements and amendments to mandatory publications shall be considered to be in full force and effective immediately upon publication. The publications identified as Advisory are for the Contractors awareness. They are not mandatory; however, it is highly recommended that the Contractor review all publications and forms. Publications and Forms are coded as Advisory (A) or Mandatory (M).

PUBLICATION	TITLE/SUBJECT	A/M
AR 190-40	Serious Accident Report	M
AR 190-13	The Army Physical Security Program	A
FD Reg 190-5	Fort Drum Traffic Code	M
FD Reg 385-3	Fort Drum Safety	M
FORMS		
DA Form 285	United States Army Accident Investigation Report	M

End of PWS

SECTION 2: INSPECTION AND ACCEPTANCE

1. INSPECTIONS: Government inspections are for the sole benefit of the Government and do not relieve the Contractor of his responsibility for providing adequate quality control measures. The Government will perform quality assurance (QA) of the Contractor's performance under this contract using various methods of surveillance. The COR may compare results of inspections performed by the Contractor's inspectors with the actual conditions observed during Government inspections. The Government reserves the right to conduct 100% inspections.

2. ACCEPTANCE: The Government will accept all work when the Contractor performs and completes the work within the standards described in the PWS.

3. NON-CONFORMANCE: N/A

4. GOVERNMENT'S RIGHTS: The rights of the Government and remedies described in this section are in addition to all other rights and remedies set forth in these documents. Specifically, the Government reserves its rights under the Terms and Conditions clause; reference FAR Clause 52.212-4. Any deductions shall reflect the reduced value of services performed under the contract. The Contractor shall not be relieved of full performance of the services hereunder. The Government may modify the type and frequency of inspection of items.

SECTION 3: DELIVERIES OR PERFORMANCE

1. PERFORMANCE: Actual performance shall only begin after a Task Order has been issued.

2. FEDERAL HOLIDAYS: Beyond the observance of Federal Holidays or uniquely occurring national events, the Contractor may observe other dates of public or religious significance; however, the occurrence and observation of such shall not relieve the Contractor from full performance of any contract requirement or specified delivery dates. Federal Holidays are as follows:

New Year's Day	1 January
Martin Luther King Day	3rd Monday in January
President's Day	3rd Monday in February
Memorial Day	last Monday in May
Juneteenth	19 June
Independence Day	4 July
Labor Day	1st Monday in September
Columbus Day	2nd Monday in October
Veteran's Day	11 November
Thanksgiving Day	4th Thursday in November
Christmas Day	25 December

3. TASK ORDERS: Reference FAR Clauses 52.216-18, Ordering, and 52.216-19, Order Limitations. The Government will issue task orders that indicate estimated quantities of each type of work to be performed during a stated period of time. Task orders may be issued on either a monthly, quarterly, or yearly basis. One or more task orders may be issued during the ordering period.

SECTION 4: SPECIAL CONTRACT REQUIREMENTS

1. MINIMUM INSURANCE REQUIREMENTS: A current certificate from the Prime Contractor showing the following minimum amount of insurance is required to be submitted prior to beginning work on a Government installation.

TYPE		AMOUNT
I	NYS Workmen's Compensation	As required by state law
II	Employer's Liability	\$100,000, if occupational diseases are not included in the State's Worker's Compensation Coverage.
III	General Liability for Bodily Injury	\$500,000 per occurrence
IV	Automobile Liability	\$200,000 per person

	Bodily Injury	\$500,000 per occurrence
	Property Damage	\$ 20,000 per occurrence